BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Propria Persona
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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **SHANNON SMITH, LCSW, Chief Executive Officer and Founder of HOPE Program, an individual; and HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation,** Defendants.	Case No. 3:26-cv-07504-LJC **PLAINTIFF'S FIRST SET OF INTERROGATORIES TO DEFENDANT HOPE PSYCHOTHERAPY, INC. (d/b/a HOPE PROGRAM)** Set No.: 1 (Fed. R. Civ. P. 26, 33) Judge: Hon. Lisa J. Cisneros

PLAINTIFF'S FIRST SET OF INTERROGATORIES

TO DEFENDANT HOPE PSYCHOTHERAPY, INC. (d/b/a HOPE PROGRAM)

TO DEFENDANT HOPE PSYCHOTHERAPY, INC. (d/b/a HOPE PROGRAM) AND ITS ATTORNEYS OF RECORD:

Under Federal Rules of Civil Procedure 26 and 33, Plaintiff Brendan Ngehsi Newanforbi requests that Defendant HOPE Psychotherapy, Inc. (d/b/a HOPE Program) answer each interrogatory below separately and fully, in writing and under oath, and serve a written response on Plaintiff within thirty (30) days after service.

INSTRUCTIONS

1. Answer each interrogatory separately and fully in writing under oath (Fed. R. Civ. P. 33(b)(3)), within 30 days after service.

2. Answer on all information available to you, including information held by your employees, agents, attorneys, and contractors. If you cannot answer fully after reasonable inquiry, answer to the extent possible and state what you did to obtain the rest.

3. State every objection with specificity (Rule 33(b)(4)); answer any part not objected to. A privilege claim must be made as Rule 26(b)(5)(A) requires.

4. If you rely on Rule 33(d), specify the records by Bates number in enough detail for Plaintiff to locate them as readily as you could.

5. These interrogatories are continuing to the extent required by Rule 26(e).

DEFINITIONS

"YOU" and "YOUR" means Defendant HOPE as defined below.

"PLAINTIFF" means Brendan Ngehsi Newanforbi.

"HOPE" means Defendant HOPE Psychotherapy, Inc. (d/b/a HOPE Program, appearing as HOPE Program, A Licensed Clinical Social Worker Professional Corporation), including its officers, employees, and agents, and any management or records contractor acting for it.

"SMITH" means Defendant Shannon Smith, LCSW.

"CDCR" means the California Department of Corrections and Rehabilitation, including its Division of Adult Parole Operations (DAPO) and any parole agent or supervisor.

"CTM" means a Containment Team Meeting or similar case conference among a treatment provider, CDCR, and/or a polygraph examiner concerning a parolee.

"COMPLETION DETERMINATION" means any recommendation, decision, or report about whether a parolee has completed, graduated from, or may be discharged or titrated from sex-offender treatment, including any statement that the parolee has not completed treatment.

"SAN JOAQUIN ACTION" means Newanforbi v. Palacios et al., San Joaquin County Superior Court, in which HOPE was a party.

"STOCKTON SITE" means HOPE's Stockton, California treatment location.

"DOCUMENT" means has the full meaning of Fed. R. Civ. P. 34(a)(1)(A), including electronically stored information (ESI) such as email, text and app-based messages, EHR entries, audit logs, and audio or video recordings.

"COMMUNICATION" means any transmission of information by any means, including email, text or app message (on any device, including a personal device used for work), letter, portal message, and recorded meeting.

"IDENTIFY" means (a) for a person: full name, last known employer, title, and business contact; (b) for a DOCUMENT: type, date, author, recipients, and Bates number if produced.

"RELEVANT PERIOD" means January 1, 2021 to the date of response, unless a request states

otherwise.

INTERROGATORIES

INTERROGATORY NO. 1:

IDENTIFY each person who participated in making, approving, or communicating any COMPLETION DETERMINATION concerning PLAINTIFF during the RELEVANT PERIOD, stating for each the determination(s) and date(s) involved and the person's role.

INTERROGATORY NO. 2:

For each CTM concerning PLAINTIFF during the RELEVANT PERIOD, state the date and the COMPLETION DETERMINATION HOPE communicated to CDCR at that CTM.

INTERROGATORY NO. 3:

Describe each policy, practice, or custom (written or unwritten) that governed whether a parolee at the STOCKTON SITE could receive a favorable COMPLETION DETERMINATION while on active parole supervision, stating the period each was in effect.

INTERROGATORY NO. 4:

Describe the change to HOPE's treatment-completion or aftercare policy that HOPE has stated occurred in or about October 2024, including what changed, the effective date, and who approved it.

INTERROGATORY NO. 5:

IDENTIFY each contract term, CDCR directive, guideline, or other CDCR requirement that HOPE contends required, limited, or influenced any COMPLETION DETERMINATION concerning parolees during the RELEVANT PERIOD.

INTERROGATORY NO. 6:

Describe each way in which CDCR participated in, reviewed, approved, or could override a COMPLETION DETERMINATION by HOPE concerning a parolee during the RELEVANT PERIOD (including through CDCR Form 3043, CTMs, CDCR's ARMS system, or any titration form).

INTERROGATORY NO. 7:

State all facts supporting HOPE's contention that it did not act under color of state law with respect to the COMPLETION DETERMINATIONS concerning PLAINTIFF.

INTERROGATORY NO. 8:

State all facts supporting any contention by HOPE that each COMPLETION DETERMINATION concerning PLAINTIFF was an individualized clinical judgment rather than the application of a HOPE policy, practice, or custom.

INTERROGATORY NO. 9:

State all facts supporting any contention by HOPE that PLAINTIFF had an adequate procedure (including any CDCR grievance or appeal) to challenge HOPE's COMPLETION DETERMINATIONS or HOPE's reports to CDCR about him.

INTERROGATORY NO. 10:

For each year from 2021 through 2026, state the number of parolee clients at the STOCKTON SITE who received a favorable COMPLETION DETERMINATION while still on parole supervision (de-identified counts only).

INTERROGATORY NO. 11:

IDENTIFY each complaint, grievance, objection, or request PLAINTIFF made to HOPE (orally or in writing) during the RELEVANT PERIOD concerning his treatment, completion, schedule, homework, or HOPE's reports to CDCR, stating the date and the HOPE recipient of each.

INTERROGATORY NO. 12:

Describe each statement made by Katie Palacios or any other HOPE employee to CDCR between January 1, 2025 and the present characterizing PLAINTIFF's behavior, attitude, participation, or complaints (including any use of the words "disruptive" or "ringleader"), stating the speaker, date, and recipient.

INTERROGATORY NO. 13:

State all facts supporting any contention by HOPE that HOPE's statements to CDCR about PLAINTIFF were not made because of, or in response to, PLAINTIFF's complaints or protected speech.

INTERROGATORY NO. 14:

State all facts supporting any contention by HOPE that it did not threaten, intimidate, or coerce PLAINTIFF within the meaning of California Civil Code section 52.1.

INTERROGATORY NO. 15:

Describe how and when HOPE first learned of In re Dwyer (San Joaquin County Superior Court habeas proceeding) and of the April 17, 2025 amendments to Cal. Code Regs., tit. 15, section 3574, and state what HOPE did in response to each.

INTERROGATORY NO. 16:

IDENTIFY each officer, director, or managing agent of HOPE with final authority over HOPE's treatment-completion policies during the RELEVANT PERIOD, stating the period of that authority.

INTERROGATORY NO. 17:

Describe SMITH's role in adopting, approving, enforcing, or changing HOPE's treatment-completion policies for parolees during the RELEVANT PERIOD.

INTERROGATORY NO. 18:

IDENTIFY each recording (audio or video) of a CTM or group session involving PLAINTIFF made during the RELEVANT PERIOD, stating its date, custodian, current location, and, if it no longer exists, when and why it was deleted or overwritten.

INTERROGATORY NO. 19:

IDENTIFY each electronic system HOPE used during the RELEVANT PERIOD to create or store information about PLAINTIFF or about COMPLETION DETERMINATIONS (including EHR, email and archive accounts, messaging platforms, cloud drives or internal websites, and any CDCR system HOPE accessed), stating for each its custodian and retention setting.

INTERROGATORY NO. 20:

State the date HOPE first anticipated litigation by PLAINTIFF, and describe each litigation-hold or preservation step HOPE has taken (date, scope, and recipients, but not privileged content).

INTERROGATORY NO. 21:

IDENTIFY each insurance policy (including any excess or umbrella policy) under which an insurer may be liable to satisfy all or part of a judgment against HOPE or SMITH in this action, and state each insurer's coverage position (including any reservation of rights).

Dated: _____, 2026

Respectfully submitted,

_____

BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Propria Persona

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI
Plaintiff

Case Number: 3:26-cv-07504-LJC

V.

SHANNON SMITH, LCSW;
HOPE PSYCHOTHERAPY, INC.
Defendants

PROOF OF SERVICE

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I hereby certify that on *(Date)* , I served a copy of the attached

PLAINTIFF'S FIRST SET OF INTERROGATORIES TO DEFENDANT HOPE PSYCHOTHERAPY, INC. (d/b/a HOPE PROGRAM),

by transmitting a true copy by electronic mail (PDF attachments) to the e-mail address(es) hereinafter listed:

(List Name and E-mail Address of Each Defendant or Attorney Served)

Cynthia G. Lawrence, Esq. — cynthia@sims-law.net
Blaze Van Dine, Esq. — blaze@sims-law.net
Eric T. Martinez, Esq. — emartinez@sims-law.net
Sims, Lawrence & Broghammer (e-service) — slb-eservice@sims-law.net

Attorneys for Defendants Shannon Smith, LCSW, and
HOPE Psychotherapy, Inc. (d/b/a HOPE Program)

Service by electronic means under Fed. R. Civ. P. 5(b)(2)(E),
pursuant to the written consent of counsel for Defendants.

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI
v.
SHANNON SMITH, LCSW et al.

Case Number: 3:26-cv-07504-LJC
PROOF OF SERVICE
(continued)

The names and addresses of the persons served appear on page 1.

I declare under penalty of perjury that the foregoing is true and correct.

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Brendan Ngehsi Newanforbi, In Propria Persona